

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

MR. JUSTICE JAMAL KHAN MANDOKHAIL
MR. JUSTICE MALIK SHAHZAD AHMAD KHAN

Criminal Petition No.71-P of 2025

(On appeal against the judgment dated 07.04.2025 passed by the Peshawar High Court, Peshawar in Criminal Appeal No.626-P/2024)

Stana Dar

Versus

...Petitioner(s)

Muhammad Ayeen and another

...Respondent(s)

For the Petitioner:

Mr. Muhammad Saeed Khan ASC
(via video link, Peshawar)

For the State:

Mr. Altaf Khan, Additional Advocate
General KPK

Date of Hearing:

06.01.2026

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J U D G M E N T

MALIK SHAHZAD AHMAD KHAN, J.- Through the instant petition, Stana Dar (petitioner) has sought leave against impugned judgment dated 07.04.2025, passed by the Peshawar High Court, Peshawar. The petitioner was tried by the learned Judicial Magistrate Jamrud (Khyber) (Empowered u/s 30 Cr.P.C), pursuant to a case registered vide FIR No.08/2023 dated 10.02.2023, under Section 324 PPC, at Police Station Malagori, District Khyber. The learned Trial Court vide its judgment dated 13.07.2024, convicted the petitioner **(i)** under section 324 PPC to seven (07) years rigorous imprisonment with fine of Rs.50,000/- and in default thereof to further undergo three (03) months simple imprisonment **(ii)** under sections 336 PPC to five (05) years rigorous imprisonment along with Arsh (1/3 of the Diyat under the concept of merger of Arsh) and in default thereof to further undergo five (05) months simple

imprisonment (iii) under section 337-D PPC to five (05) years rigorous imprisonment as Tazir along with Arsh (1/3 of the Diyat under the concept of merger of Arsh). All the sentences awarded to the petitioner were ordered to run concurrently and benefit of section 382-B Cr.P.C, was also extended to the petitioner. The appeal filed by the petitioner was partly allowed by the learned High Court and the sentences of imprisonment awarded to the petitioner by the learned trial Court under sections 336/337-D PPC, were set-aside, however, the punishments of Arsh awarded to the petitioner in both the abovementioned offences were upheld/maintained and the petitioner was directed to remain in jail till payment of Arsh. The conviction and sentence awarded to the petitioner under section 324 PPC, were also maintained.

2. Arguments heard. Record perused.

3. As per brief allegations levelled in the FIR, on 10.02.2023 at 1.15 p.m (noon), on account of a property dispute, the petitioner made a fire shot with his firearm weapon, which landed on the back side of the neck of Muhammad Ayeen (complainant).

4. The petitioner was named in a promptly lodged FIR, which was lodged on the day of occurrence i.e., on 10.02.2023, at 4.30 p.m i.e., within a period of three (03) hours and fifteen (15) minutes from the occurrence. The ocular account of the prosecution was brought on the record through Muhammad Ayeen complainant (PW-6) and Shaheenshah (PW-7). Muhammad Ayeen complainant (PW-6), is an injured eye-witness of the occurrence. He was medically examined on the day of occurrence i.e., 10.02.2023 and the medical officer namely Dr. Muhammad Noman (PW-4), noted two injuries (one entry and one exit) on his body. The prosecution eye-witnesses were cross-examined at length but their evidence could not be shaken, which

is confidence inspiring and trustworthy. The ocular account of the prosecution has fully been supported by the medical evidence brought on the record through Dr. Muhammad Noman (PW-4), who noted an entry wound on the back side of the neck of Muhammad Ayeen complainant and an exit wound in front of the neck.

5. We are, therefore, of the view that the prosecution has proved its case against the petitioner beyond the shadow of any doubt to the extent of offences under section 324/336 PPC. However, the ingredients of offence under section 337-D PPC, have not been proved in this case beyond the shadow of doubt. We are of the view that the ingredients of offence under section 337-D PPC, would attract if an injury extends to the body cavity in the trunk of a person. In the instant case, only one injury was sustained by Muhammad Ayeen complainant which was on the back side of his neck and the same is not part of the trunk of the body, therefore, the conviction and sentence awarded to the petitioner for the offence under section 337-D PPC, is not sustainable in the eyes of law. Learned Law Officer could not controvert the abovementioned legal proposition involved in the instant case. Consequently, this petition is converted into an appeal and partly allowed. The conviction and sentence of the petitioner under section 337-D PPC, are hereby set-aside and impugned judgment is modified accordingly. However, the convictions and sentences of the petitioner under sections 324/336 PPC, are maintained and upheld.

Islamabad, the
06th of January, 2026
Approved For Reporting
Aitzaz